NATIONAL COMPANY LAW TRIBUNAL

BENCH-V,NEW DELHI.

In the matter of:

In the CA (CAA)135/230-232/2021,

Naya Bazar Chit Fund Private Limited, Transferor Company

and

Arvind Conductors Pvt. Ltd., Transferee Company, order was reserved on 15.2.2022.

While going through the documents, it is observed that in para 35 of the application (pages 23-24) as well as in the Scheme of arrangement at Annexure A-1 (pages 54-55), it is stated that Transferee Company shall issue and allot 100 full paid-up equity shares of Rs.100/- for every 0.2455 fully paid up equity share of Rs.10/- to the respective shareholders in the Register of Members of (NBCFPL). As against this, the Valuation report at Annexure A-2 (page 89), states the value per share of Transferee Company as Rs.4020.48, and of NBCFPL as Rs.9.87 and the exchange ratio is mentioned as 0.2455 for every 100 shares held in NBCFPL viz-a-viz 1 share of Transferee Company.

The matter may kindly be listed on 25th February 2022 for clarification.

Sd/-

(AVINASH K SRIVASTAVA)
MEMBER (T)

Sd/-

(P S N PRASAD)
MEMBER (J)